

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 668, As Amended

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO CHILD CUSTODY INTERFERENCE; PROVIDING LEGISLATIVE INTENT;
AMENDING SECTION 18-4506, IDAHO CODE, TO REVISE PROVISIONS REGARD-
ING CHILD CUSTODY INTERFERENCE AND TO ESTABLISH PROVISIONS REGARDING
PENALTIES AND ENFORCEMENT; AND DECLARING AN EMERGENCY AND PROVIDING AN
EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE INTENT. It is the intent of the Legislature to
strengthen Idaho's child custody interference law by clarifying enforcement
duties, providing uniform guidance, and implementing a graduated penalty
structure that ensures proportional accountability. The Legislature af-
firms that child custody interference is a criminal offense under Title
18, Idaho Code, and is distinct from kidnapping. The Legislature further
intends to ensure that children subject to custodial interference receive
prompt welfare checks.

SECTION 2. That Section 18-4506, Idaho Code, be, and the same is hereby
amended to read as follows:

18-4506. CHILD CUSTODY INTERFERENCE DEFINED -- DEFENSES -- PUNISH-
MENT. ~~1-~~ (1) A person commits child custody interference if the person,
whether a parent or other, or agent of that person, intentionally and without
lawful authority:

(a) Takes, entices away, keeps or withholds any minor child from a
parent or another person or institution having custody, joint cus-
tody, visitation or other parental rights, whether such rights arise
from temporary or permanent custody order, or from the equal custodial
rights of each parent in the absence of a custody order; or

(b) Takes, entices away, keeps or withholds a minor child from a parent
after commencement of an action relating to child visitation or custody
but prior to the issuance of an order determining custody or visitation
rights.

~~2-~~ (2) It shall be an affirmative defense to a violation of the provi-
sions of subsection ~~1-~~ (1) of this section and the charged party has the bur-
den to establish that:

(a) The action is taken to protect the child from imminent physical
harm;

(b) The action is taken by a parent fleeing from imminent physical harm
to himself;

(c) The action is consented to by the lawful custodian of the child; or

~~(d) The child is returned within twenty-four (24) hours after expira-~~
~~tion of an authorized visitation privilege.~~

(d) Compliance with a custody order at the specified time was temporarily impracticable due to circumstances beyond the control of the charged party, provided that all of the following are established:

(i) The circumstance was not reasonably avoidable through ordinary planning or diligence at the time compliance was required and was not based on speculation, prediction, or hindsight assessment;

(ii) The circumstance rendered timely compliance objectively impracticable or unsafe and was not based on personal convenience, preference, or disagreement with the custody order;

(iii) The failure to comply did not extend beyond the period during which compliance was actually impracticable or unsafe, and compliance was resumed at the earliest feasible time;

(iv) The charged party made reasonable and timely efforts to notify the other parent of the delay and the reason for it as soon as practicable;

(v) The charged party took reasonable steps to mitigate the delay and to minimize interference with the other parent's custodial time; and

(vi) The circumstance was not used as a pretext to withhold the child or to interfere with the other parent's custodial rights.

(3) A temporary delay attributable solely to circumstances meeting the requirements of subsection (2) (d) of this section does not constitute child custody interference where, based on objective and contemporaneously observable conditions, a law enforcement officer has no reasonable basis to doubt the explanation provided, and the officer may document the encounter by incident report rather than issuing a citation or offense report, without limiting future enforcement if a violation is later established.

~~3. A violation of the provisions of subsection 1. of this section shall be a felony, unless the defendant did not take the child outside the state, and the child was voluntarily returned unharmed prior to the defendant's arrest in which case the violation shall be reduced to a misdemeanor.~~

~~4. (4) Any reasonable expenses incurred by a lawful custodian in locating or attempting to locate a child taken in violation of the provisions of subsection 1. of this section may be assessed against the defendant at the court's discretion in accordance with chapter 53, title 19, Idaho Code.~~

(5) (a) A person guilty of child custody interference shall be punished as follows:

(i) For a first offense, such person shall be subject to an infraction punishable by a fine not to exceed one hundred dollars (\$100).

(ii) For a second offense, such person shall be subject to an infraction punishable by a fine not to exceed three hundred dollars (\$300).

(iii) For a third and fourth offense, such person shall be guilty of a misdemeanor punishable by a fine not to exceed one thousand dollars (\$1,000), imprisonment not to exceed two (2) days, or both such fine and imprisonment.

(iv) For a fifth offense and subsequent offenses, such person shall be guilty of a felony punishable by a fine not to exceed five

1 thousand dollars (\$5,000), imprisonment not to exceed one (1)
2 year, or both such fine and imprisonment.

3 (v) When the defendant took the child outside the state for longer
4 than twenty-four (24) hours, such person shall be guilty of a
5 felony.

6 (b) For any report of child custody interference, law enforcement offi-
7 cers shall:

8 (i) Verify the location of the minor child, if possible;

9 (ii) Check the safety and well-being of the child; and

10 (iii) Complete a written offense report based on the law enforce-
11 ment officer's findings. Such report shall include, at a minimum:

12 1. The date and time of the safety check;

13 2. The location of the child;

14 3. The observable physical condition of the child; and

15 4. Any statements made by the child or caregivers relevant
16 to the child's safety or well-being.

17 (6) Additional periods of physical custody or visitation of the minor
18 child to compensate for the denial of physical custody or visitation to the
19 lawful custodian of the minor child in violation of this section shall be
20 governed pursuant to chapter 7, title 32, Idaho Code.

21 SECTION 3. An emergency existing therefor, which emergency is hereby
22 declared to exist, this act shall be in full force and effect on and after
23 July 1, 2026.